

25PR00188 Estate of Donald Ray Lewis

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Account and Report

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Estate of Donald Ray Lewis

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Account and Report

Tentative Ruling: NO APPEARANCES REQUIRED. This matter is CONTINUED to September 4, 2026, at 9:30 a.m. in Department 63. As objections have been filed, pursuant to local rule 6.2 (F)(2), the parties are directed to meet and confer and make a reasonable and good faith attempt to informally resolve the controversy at a face-to-face conference (which is deemed to include video platforms such as Zoom), if possible, otherwise by telephone conference. If the matter has not resolved, the parties shall each file statements of issues no later than seven (7) court days before the continued hearing date. Local Rule 6.2 F.3.

The request for homestead is denied without prejudice. Any such request should be made by a separate noticed petition and not in the middle of a final account and distribution petition. Any renewed petition for homestead must be filed and served at least 15 days before the next hearing or any such request will be waived. The parties are informed that the Court would likely leave estate administration open for the duration of any homestead. Otherwise there is no mechanism to address issues that arise, such as claims of waste, or neglect, or sub-renting, etc. If petitioner asserts that estate administration should instead be closed, any renewed petition for homestead must address the legal authority for doing so, as well as the practical challenges that would result such as what mechanisms would exist for issues that arise, and how final distributions, such as child support, would be made upon the termination of the homestead. The Court will not entertain the petition for final account and distribution until after it has ruling on any homestead petition.

The "Response to Objection" filed July 20, 2026, is not a recognized type of pleading. California Probate Code §1000(a). The Court strikes said response pursuant to California Code of Civil Procedure §436(b).